

MEMORANDUM IN OPPOSITION TO VARIANCE APPLICATION

Analysis of the Five Statutory Criteria Under RSA 674:33

To: City of Manchester Zoning Board of Adjustment
From: Nick Levasseur, 30 Mystic Street, Manchester, NH 03103 (Ward 9); nearby resident and former State Representative, Ward 4
Re: Case #ZBA2026-063 — 26 Titus Avenue (Map 554, Lot 17C) — Opposition to Requested Variances
Date: September 10, 2026

The Board may grant this application only if it finds ALL FIVE criteria below satisfied. RSA 674:33, I(a)(2) (listing subparagraphs (A) through (E) conjunctively). If even one fails, denial is required regardless of the others. This memorandum sets out the controlling statutory text, the governing New Hampshire case law, and the specific facts of record, drawn from the applicant's own submission ("App.", cited by packet page number), demonstrating that at least three of the five criteria are not met on this record.

1. NOT CONTRARY TO THE PUBLIC INTEREST — RSA 674:33, I(a)(2)(A)

The legal standard

A variance is only "contrary to the public interest" if it would "unduly, and in a marked degree" conflict with the ordinance such that it violates the ordinance's "basic zoning objectives." *Chester Rod & Gun Club v. Town of Chester*, 152 N.H. 577, 581 (2005); *Harborside Assocs. v. Parade Residence Hotel*, 162 N.H. 508, 514 (2011). The Board asks two things: would the variance (a) alter the essential character of the locality, or (b) threaten public health, safety, or welfare? "Mere conflict with the terms of the ordinance is insufficient." *Harborside* at 514.

The facts

- No traffic study, parking study, or lighting study anywhere in the application.
- Only 20 parking spaces proposed for 13 units — potentially 40+ residents.
- The zoning review sheet requires Site Lighting Standards (§8.5) but marks it "Not Shown," with the reviewer noting only "Can Comply" — unverified, not confirmed.
- Manchester Site Plan Regs §9.1(A)(1) exempts only "residential projects creating fewer than 10 dwelling units" from traffic documentation. This project (13 units) exceeds that — a traffic-impact letter is required at minimum under §9.1(A)(2); a full study is the standard example for projects over 50 units or affecting a signalized intersection (§9.1(A)(3)).
- NH DOT's own traffic documentation guidance separately treats 0–10 units as the minimal tier for residential projects — 13 units clears this external benchmark too.
- The applicant's own memo (App. p. 11, criterion 1, Dubai Group memo to ZBA dated May 20, 2026) offers only that the neighborhood "comprises of a mix of various uses" and the project is a "reasonable transition" — an assertion, not a study. No trip generation, sight distance, or vehicle count data is offered anywhere in the application.
- Zoning Review Sheet (App. p. 6, Article 8 table) lists "Visibility at Intersections" as required under §8.4 with the remark "No Information" — an unaddressed safety standard at a corner lot.

2. SPIRIT OF THE ORDINANCE IS OBSERVED — RSA 674:33, I(a)(2)(B)

The legal standard

Uses the same "unduly, and in a marked degree" test as public interest — the NH Supreme Court has held the two requirements are "coextensive and related." *Chester Rod & Gun Club*, 152 N.H. at 580; *Malachy Glen Assocs. v. Town of Chichester*, 155 N.H. 102, 105–106 (2007).

The facts — six variances now sought (confirmed with Planning & Community Development)

The original denial letter and August 3, 2026 hearing notice (App. p. 1) cited **nine** ordinance sections. Following a subsequent plan revision, Planning & Community Development has confirmed directly that three of those — dumpster location, parking-drive landscaping, and fence height — have been resolved and are **not** being pursued at this hearing. The six sections remaining:

1. §4.3-A.1.C — Multifamily Dwellings (the use itself; zoning review, App. p. 2, lists this as "Not Permitted Per" this section)

2. §8.1.2 — Planned Development Lot Area (78,000 SF required; 49,484 SF actual — a 37% shortfall; App. p. 3)
 3. §5.3.1.E — Townhouse Building Type, Districts Permitted (zoning review, App. p. 3: “N/C — Townhouse Not Allowed”)
 4. §5.3.1.E.5.B — Maximum Height in Stories (2.5 allowed; 3 proposed; App. p. 3)
 5. §5.3.1.E.5.C — Maximum Height in Feet (35 ft allowed; 38 ft proposed; App. p. 3)
 6. §8.7.2.F.2 — Parking Location for Planned Developments (8-unit building’s parking sits within 20 ft of the building; App. p. 4)
- Items 1 and 3 make this a use variance, not merely a dimensional one — a request to override what the R-1B district is designed to be, stacked with four further dimensional variances. See *Boccia v. City of Portsmouth*, 151 N.H. 85 (2004) (recognizing the distinction between use and area variances); RSA 674:33, I(b)(3) (the current, unified standard applies identically to both).
 - R-1B is defined on the zoning review sheet (App. p. 2) as “Residential One-Family — High Density.” The applicant’s memo (App. p. 11, criterion 2) argues the district’s “spirit” is to “provide higher density residential neighborhoods” — but the district’s own name specifies one-family housing at higher density, not multifamily buildings.
 - The denial letter itself (App. p. 1, signed by Michael J. Landry, PE, Esq., Deputy Director of Building Regulations) states directly that the proposal “is prohibited” under these sections and that the Department has “no authority to grant this permit.” That denial predates the plan revision; the six sections above remain live.

3. SUBSTANTIAL JUSTICE IS DONE — RSA 674:33, I(a)(2)(C)

The legal standard

“Perhaps the only guiding rule on this factor is that any loss to the individual that is not outweighed by a gain to the general public is an injustice.” *Malachy Glen Assocs. v. Town of Chichester*, 155 N.H. 102, 109 (2007). The Board also looks at whether the proposal is consistent with the area’s present use. *Id.*

The facts

- The applicant’s memo (App. p. 11, criterion 3) bases “substantial justice” explicitly on the applicant’s own economic benefit: “The benefits to the applicant in constructing residential which is far more conducive to the property provides substantial justice.” Private profit is not a valid basis for this finding (see Criterion 5, *Olszak and Governor’s Island Club*, below).
- There is no real “loss” to weigh in the first place — the applicant’s own plans (App. p. 15; see Criterion 5) show a fully conforming, profitable 5-lot alternative already exists on this same parcel.
- The applicant’s memo does not address the countervailing public loss: overflow parking onto Titus Ave, Calef Road, and Mystic Street; and added traffic at an unstudied intersection.

4. VALUES OF SURROUNDING PROPERTIES NOT DIMINISHED — RSA 674:33, I(a)(2)(D)

The legal standard

The applicant bears the burden of showing the variance will not diminish surrounding property values; unsupported assertions are insufficient. See generally *Governor’s Island Club v. Town of Gilford*, 124 N.H. 126, 130 (1983).

The facts

- The applicant’s memo (App. p. 12, criterion 4) states only that there is “ample buffering” and the project “would not negatively affect surrounding properties.” No appraisal, market study, or real estate data appears anywhere in the application — contrast the standard practice of submitting a licensed appraiser’s opinion, as documented in comparable applications before other NH boards (e.g., *Bold Steps Clinic* application, Peterborough ZBA, 2026, citing a market analysis from a named real estate broker).
- Every abutting lot is currently single-family (App. p. 9, GIS parcel map; App. p. 14, Zoning Exhibit); a 3-story, 13-unit complex is a direct change to the immediate streetscape’s character that the applicant’s memo doesn’t quantify.
- Optional, lower-certainty point: the Court has referenced but never formally adopted a “cumulative effect” concept for weighing multiple nearby developments together — *Bacon v. Town of Enfield* (2004). Given the existing 96-unit complex across the street, this could support an argument about concentrated density at one intersection, though it carries less settled legal weight.

5. UNNECESSARY HARDSHIP — RSA 674:33, I(a)(2)(E), defined at I(b)(1)–(3)

The legal standard

Requires EITHER (A)(i) “no fair and substantial relationship exists between the general public purposes of the ordinance provision and the specific application of that provision to the property,” AND (ii) “the proposed use is a reasonable one” — RSA 674:33, I(b)(1); OR (B) if (A) isn’t established, the property “cannot be reasonably used in strict conformance with the ordinance, and a variance is therefore necessary to enable a reasonable use of it” — RSA 674:33, I(b)(2). Applies identically to use and dimensional variances — I(b)(3). This unified test originates in *Simplex Technologies, Inc. v. Town of Newington*, 145 N.H. 727 (2001), later codified by the legislature in 2010.

Financial or economic hardship is not, by itself, sufficient to establish unnecessary hardship. *Olszak v. Town of New Hampton*, 139 N.H. 723, 726 (1995); *Governor’s Island Club v. Town of Gilford*, 124 N.H. 126, 130 (1983). Nor do personal circumstances of the landowner establish hardship — *Ryan v. City of Manchester*, 123 N.H. 170, 174 (1983) (landowner’s own health problems did not justify a home-business variance).

The facts — the applicant's own By-Right Subdivision Plan (App. p. 15, Sheet 3 of 3, prepared by The Dubai Group, Inc., dated May 21, 2026)

Lot	Total Area	Buildable Area
Proposed Lot 1	8,918 SF	6,000 SF
Proposed Lot 2	8,185 SF	6,110 SF
Proposed Lot 3	7,456 SF	6,083 SF
Proposed Lot 4	7,422 SF	6,076 SF
Proposed Lot 5	28,425 SF	25,215 SF

- The applicant's own memo (App. p. 11, criterion 3) states outright: “The property can support five (5) single family home lots meeting the underlying zoning.” A direct admission, by the applicant's own licensed engineer, that a fully conforming, reasonable use exists without any variance.
- Their stated reasons for preferring the townhouse version are convenience, not hardship (App. p. 11): four of five lots would need separate curb cuts on Calef Road; the site would need grading “built” into the slope for the single-family option; and, again, “the benefits to the applicant.”
- Neither branch of the statutory test is satisfied: (A)(i) fails because the lot-area and density limits bear an obvious relationship to their purpose here (controlling density and traffic on a residential corner); (B) fails because the property plainly can be reasonably used in strict conformance — the applicant's own engineer drew the plan proving it, App. p. 15.
- The general principle applies here as elsewhere in this line of cases: the hardship inquiry turns on whether a reasonable use exists under the ordinance as written, not on which use would be most advantageous to the owner. *Simplex*, 145 N.H. 727; *Olszak*, 139 N.H. at 726.

A. APPENDIX — QUICK CASE LAW INDEX

- RSA 674:33, I(a)(2)(A)–(E) — the five statutory criteria
- RSA 674:33, I(b)(1)–(3) — definition of unnecessary hardship
- *Simplex Technologies, Inc. v. Town of Newington*, 145 N.H. 727 (2001) — unified hardship standard, later codified
- *Olszak v. Town of New Hampton*, 139 N.H. 723, 726 (1995) — financial hardship insufficient alone
- *Governor’s Island Club v. Town of Gilford*, 124 N.H. 126, 130 (1983) — same principle, earlier case
- *Ryan v. City of Manchester*, 123 N.H. 170, 174 (1983) — personal circumstances ≠ hardship
- *Chester Rod & Gun Club v. Town of Chester*, 152 N.H. 577, 581 (2005) — “unduly, in a marked degree” test
- *Harborside Assocs. v. Parade Residence Hotel*, 162 N.H. 508, 514 (2011) — applies test under current statute
- *Malachy Glen Assocs. v. Town of Chichester*, 155 N.H. 102 (2007) — public interest/spirit test; substantial justice test
- *Boccia v. City of Portsmouth*, 151 N.H. 85 (2004) — recognized the use/area variance distinction, since unified by RSA 674:33, I(b)(3)
- *Bacon v. Town of Enfield* (2004) — “cumulative effect,” referenced but not formally adopted by the NH Supreme Court

B. APPENDIX — MANCHESTER ORDINANCE & REGULATION CITATIONS

- Zoning Ordinance §4.3-A.1.C, §5.3.1.E, §5.3.1.E.5.B/C, §8.1.2, §8.7.2.F.2 — the six sections currently sought at the September 10, 2026 hearing. (The original denial letter and August hearing notice cited three additional sections — §5.6.5.D, §8.1.4, §8.2.4-A — resolved by a subsequent plan revision and confirmed by Planning & Community Development as no longer pursued.)
- Subdivision & Site Plan Review Regs §4.3(A) — complete-application requirement; written waiver required to omit any checklist item
- §8.4(B) — Storm Drainage (site plan track, not §6.4 which governs subdivisions)
- §9.1(A)(1)–(3) — Traffic Impact Studies, tiered by project size
- §9.2 — Soil Studies

C. APPENDIX — PROCEDURAL GAPS: MISSING FROM THE APPLICATION

- Traffic-impact letter or study (§9.1)
- Drainage plan demonstrating stormwater compliance (§8.4)
- Utilities Plan for sewer & water impact (required site plan checklist item)
- Soil Study (§9.2)
- Market/appraisal analysis addressing surrounding property values
- NH Natural Heritage Bureau DataCheck — not required by ordinance, but a free, fast way to screen for state-listed species; the parcel is recorded as wooded

D. CONCLUSION

For the reasons above, the record does not support findings that this application satisfies the unnecessary hardship, spirit of the ordinance, or substantial justice criteria of RSA 674:33, I(a)(2). The applicant's own submission (App. p. 15) establishes that a fully conforming, reasonable alternative use of this property exists. Under *Olszak v. Town of New Hampton*, 139 N.H. 723, 726 (1995), and *Governor's Island Club v. Town of Gilford*, 124 N.H. 126, 130 (1983), the applicant's preference for a more profitable use over that conforming alternative does not constitute unnecessary hardship as a matter of law. I respectfully request that the Board deny this application.

Respectfully submitted,

/s/ Nickolas J. Levasseur

(Electronically signed)

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